

9:00 AM

Line 4

25-CIV-02117 CONSUELO QUO VS. PRENUVO CLINIC CA 1, ET AL

CONSUELO QUO
PRENUVO CLINIC CA 1

JOSHUA S. MARKOWITZ
ALEXANDRA N. PAPLOS

Plaintiff's Motion for Trial Preference

TENTATIVE RULING:

Plaintiff Consuelo Quo's Motion for Trial Preference is GRANTED pursuant to Cal. Code of Civ. Proc. ("CCP") Section 36(a).

Cal. Code of Civ. Proc. Section 36 establishes a mandatory trial preference for civil actions where a plaintiff is over 70 years of age, has a substantial interest in the action and the health of the party is such that a preference is necessary to prevent prejudice. CCP § 36(a)(1-2). Here, Plaintiff's daughter's declaration establishes that Plaintiff is 93 years old. Stacey Quo Decl, ¶ 2.

In addressing this statutory language for a preference motion under Section 36(a) for parties over 70 years of age, courts have consistently held the statutory preference to be "mandatory and absolute." (See, e.g., *Swaithes v. Superior Court* (1989) 212 Cal.App.3d 1082.) California courts have emphasized that such mandatory preferences represent "a substantive public policy concern which supersedes" considerations of court convenience or other litigants' interests. (*Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689. The trial court has no discretion to balance competing interests when a party qualifies for mandatory preference. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529.).

“Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.”

CCP § 36(f).

Per the express statutory language and case precedent, this Court does have the full 120-day period as to when to set the trial date. CCP § 36(f); *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 93 (“section 36, subdivision (e) allows the trial court to set a trial date up to 120

days from hearing on the motion for preference”); *Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 603 (“having granted trial preference, respondent was required to set trial within 120 days thereafter”).

Defendant does not oppose the motion, but requests that trial be set near the outermost or latest date within the statutory period to allow for completion of discovery and trial preparation. Def. Response, pg. 3, lines 19-27. Plaintiff agrees to accept “a date as late in the statutory period as possible. The final date is January 18, 2027. Plaintiff will accept January 11, 2027 as the trial date.” Plaintiff’s Reply, pg. 2, lines 1-2. The Court will accept the proposed date.

Jury Trial is set for January 11, 2027 at 2:00 p.m., in-person, Courtroom L, Northern Branch in South San Francisco, CA. In the absence of other information, Court is setting this as a 5-day Jury Trial.

Pretrial Conference is set for December 7, 2026 at 10:00 a.m., in-person, Courtroom L, Northern Branch.

Court will issue its PreTrial Order No. 1, which is also posted on the department civil web page for review and for all parties to comply with.

Mandatory Settlement Conference (“MSC”) is scheduled for November 20, 2026 at 9:00 a.m.

The Court notes that this case was not given an ADR Referral which is a standard practice. Parties are encouraged to proceed to private ADR forthwith.

Parties are advised that Judge Mau may be willing to vacate this MSC by proposed Stipulation and Order, if the parties can agree on a *full-day, in-person, Mediation* with a mutually agreed upon private Mediator that is completed before the Pretrial Conference.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-04764 MARIA MANJARREZ, ET AL VS. JOSE CONSTANTINO PANAMENO, ET
AL

MARIA MANJARREZ
JOSE CONSTANTINO PANAMENO

REUBEN J. DONIG
MICHAEL E. ROGASKI

Plaintiffs' Motion to Compel Discovery Responses to Form Interrogatories and Request for Documents; to Deem as Admitted Unresponded-to Matters Covered Plaintiffs' Request for Admissions, and for Sanctions

TENTATIVE RULING:

For the reasons stated below, Plaintiffs Maria and Jesus Manjarrez' motion to compel Defendants Jose Constantino Panameo and Ana Panameno to serve responses to Plaintiffs' Form Interrogatories and Requests for Production of Documents ("RFPs"), and to deem the matters in Plaintiffs' Requests for Admission ("RFAs") admitted; and to compel Defendant Jose Constantino Panameo's deposition, which also seeks monetary sanctions, is GRANTED.

Background.

This case arises from an alleged July 2, 2023 automobile collision. On Oct. 16, 2025, Plaintiffs served, on each of the two defendants, Form Interrogatories, Requests for Production of Documents ("RFPs"), and Requests for Admission ("RFAs"). Initial responses were due in Nov. 2025. For several months after Nov. 2025, Defendants' counsel requested extensions of time to provide responses, which Plaintiffs' counsel repeatedly granted. (Donig Declaration.) Plaintiffs' counsel gave a final extension until June 8, 2026, and informed Defendants' counsel that if responses were not served by June 8, 2026, Plaintiff would file a motion to compel the discovery responses, and would seek sanctions. No responses were served by June 8, 2026.

Plaintiffs also served a Notice of Deposition for Defendant Jose Constantino Panameo's deposition, and scheduled it to take place on Dec. 15, 2025. (Donig Decl., Ex. 2.) Plaintiffs offer evidence that despite numerous attempts to have Defendant Jose Constantino Panameo appear for deposition, he still has not appeared.

On June 12, 2026, Plaintiffs filed this motion. It appears that as of early Sept. 2026, Defendants still have not served requested the discovery responses, and Defendant Jose Constantino Panameo still has not agreed to appear for a deposition.
